

24STCV06070 24STCV06070

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C07%2F09%2F2026

Source SHA-256: 0ae5a665a0abf0c1b989e9255544e5c4d4813e0714a1a0038f935db9f9fff215

Case Number: 24STCV06070 Hearing Date: July 9, 2026 Dept: 731

[TENTATIVE] ORDER GRANTING IN

PART MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR ADMISSIONS (SET ONE)

1. Background

Facts

On March 11, 2024, Plaintiffs

McMurray Henriks, LLP ("Henriks Firm") and Yana G. Henriks ("Henriks") (collectively, "Plaintiffs") filed a complaint for (1) civil extortion and (2) libel per se against Defendant Charmain Campbell ("Defendant").

On October 7, 2025, default was

entered against Defendant. On December 12, 2025, the parties stipulated to set aside default against Defendant. (Min. Order, 12/12/25 at p.1.) On March 5, 2026, Defendant filed an answer to the complaint.

On June 10, 2026, Plaintiffs filed

the instant motion to compel further responses to requests for admissions ("RFA") (Set One). Any opposition would have been due on June 25, 2026. To date, no opposition has been filed.

2. Motion

to Compel Further Responses to Request for Admissions

a.

Legal Standard

A party who receives a request

for admission must respond separately to each individual request by providing a complete and straightforward answer as the information reasonably available to the responding party permits. (Code Civ. Proc., §§ 2033.210, subd. (a); 2033.220, subd. (a).)

A

party may then move for a further response to requests for admissions where an answer to the requests are evasive or incomplete or where an objection is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).) Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2033.290, subd. (c).)

Finally, California Rules of Court, Rule 3.1345 requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules Ct., Rule 3.1345, subd. (a)(3).) ٧٧

b. Meet
and Confer

The Civil Discovery Act requires a moving party to attest to a good faith meet and confer effort as described in Code of Civil Procedure section 2016.040 before a motion to compel further discovery responses may be granted. (Code Civ. Proc., § 2030.300, subd. (b)(1); § 2031.310, subd. (b)(2); § 2033.290, subd. (b)(1).) Specifically, “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).) “[A]ttempting informal resolution means more than the mere attempt by the discovery proponent ‘to persuade the objector of the error of his ways’ and ‘a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

Plaintiffs' counsel of record, Sean

P. Ducar states that he sent Defendant a meet-and-confer email regarding the deficiencies in her responses on June 10, 2026. (Ducar Decl., ¶¶5-6.) However, there is no indication that Mr. Ducar attempted to meet and confer in-person, by telephone, or by videoconference as required by Section 2016.040. (Id.)

As such, Plaintiffs' failed to satisfy their meet and confer requirement.

Although the court will exercise its discretion and rule on the merits below, Plaintiffs' is admonished to comply with the meet and confer requirements moving forward or the court will deny the noncompliant discovery motion.

c.

Discussion

Plaintiffs move for an order

compelling Defendant to provide further responses to Plaintiffs' RFAs nos. 7-11, 15, and 18-22, which were served on April 2026 on the grounds that the current responses are vague, evasive, contain improper objections, and lack the requisite details as to denials.

As a preliminary matter, the court notes that Plaintiffs failed to file a separate statement in compliance with California Rules of Court, rule 3.1345, subdivision (a). However, the moving papers include a concise outline of the discovery requests at issue per California Rules of Court, rule 3.1345, subdivision (b)(2). Thus, the court reviews the RFAs at issue for compliance as set forth below.

Specifically, "[e]ach answer shall:

(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. (2) Deny so much of the matter involved in the request as is untrue. (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge." (Code Civ. Proc., § 2033.220.) "If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (Code Civ. Proc., § 2033.220, subd. (c).) The RFAs at issue seek the following information:

RFA no. 7: "Admit

that in the Amendment Request (Exhibit B) You demanded that Plaintiffs reduce their fee from 40% to 30% or less 'to avoid arbitration and reporting Yana Henriks to State Bar."

RFA no. 8: "Admit

that the purpose of sending the Amendment Request was to pressure Plaintiffs into paying You and Your sisters an additional approximately \$30,000 to which You were not entitled under the signed Retainer Agreement."

RFA no. 10:

"Admit that Your purpose in sending the email in Exhibit C was to pressure Plaintiffs into reducing their contractual 40% fee."

RFA no. 11: "Admit

that on September 6, 2023 You personally signed the Settlement 5670 WILSHIRE BOULEVARD, SUITE 1620 LOS ANGELES, CA 90036 MCMURRAY HENRIKS, LLP Agreement attached as Exhibit F."

RFA no. 15: "Admit

that nothing further is owed to You or Your sisters from Plaintiffs with respect to the \$300,000 settlement in Case No. 21STCV31720."

RFA no. 18: "Admit

that the statements described in Request No. 17 are false."

RFA no. 19: "Admit

that the Yelp Review accuses Yana Henriks and the firm of racial discrimination against You and Your family."

RFA no. 20: "Admit

that the accusation of racial discrimination in the Yelp Review is false."

RFA no. 21: "Admit

that when You posted the Yelp Review You knew the statements about the fee percentage and the alleged \$30,000 being withheld were false."

RFA no. 22: "Admit

that You have the present ability and authority to delete the Yelp Review from

Your Yelp account at any time.”

In response to RFA nos. 7-10, 15, 18-19, and 21-22, Defendant stated: “Denied.” Plaintiffs argue that an explanation for the denials are required per Section 2033.220, subdivision (c). The court disagrees. That particular code section requires an explanation where the responding party’s states that they do not have enough knowledge or information to “admit” or “deny” the request for admission. On the other hand, “[a]lthough ‘[a] denial of all or any portion of the request must be unequivocal [citation] ... reasonable qualifications are not improper.’ (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial, supra, ¶8:1332.1, p. 8G–16; (rev. # 1, 2012); see also Hogan and Weber, 1 Cal. Civil Discovery, supra, § 9.11, pp. 9–25 to 9–26.) Thus, for instance, the RFA response, ‘As framed, denied,’ was held to constitute a legally sufficient denial.” (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 780.) Likewise, “[t]he court at the hearing acknowledged that the individual responses consisting of one-word denials to the RFAs were code-compliant.” (Id., fn. 20.) Essentially, Defendant only needed to state “admit” or “deny” but if Defendant wanted to provide an explanation, i.e., a qualification for her denials, it would not be improper. Thus, Defendant’s response to RFA nos. 7-10, 15, 18-19, and 21-22 are code-compliant.

By contrast, in response to RFA no. 11, Defendant stated: “Objection there is no Exhibit F attached so no proper response can be given.” This response is improper and evasive. To the extent that Defendant contends that she does not have the sufficient knowledge or information to admit or deny this request, Defendant was required to state so in accordance Section 2033.220, subdivision (c). Similarly, Defendant stated as follows in response to RFA no. 20: “Not Applicable - response to number 18 is denied.” However, this response is evasive and improper. The Defendant is required to admit or deny whether the request is true and/or indicate that she does not have sufficient knowledge or information to do so without references to other requests. Therefore, further responses are warranted for RFA nos. 11 and 20.

Request for Monetary
Sanctions

Code Civil Procedure Section
2033.290, subdivision (d) provides for the imposition of monetary sanctions

against any party who unsuccessfully makes or opposes a motion to compel further unless the court finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2033.290, subd. (d).) Pursuant to the California Rules of Court, Rule 3.1348, subdivision (a), “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules Ct., Rule 3.1348, subd. (a).)

“[T]he burden is on the moving party to show (by declarations) the facts essential to an award of sanctions: e.g., the opposing party’s failure to make discovery, reasonable efforts to resolve the matter informally, etc. The burden then shifts to the party against whom sanctions are being sought to establish some excuse or justification for the conduct in question.”² (Weil & Brown, Cal. Practice Guide:³ Civ. Pro. Before Trial (The Rutter Group June 2021 Update) ¶ 8:2015.)⁴

Here, Mr. Ducar seeks \$2,500.00 in monetary discovery sanctions against Defendant for preparing the motion, reviewing Defendant’s responses, and engaging in meet and confer efforts. (Ducar Decl., ¶7.) However, Mr. Ducar failed to properly meet and confer with Defendant. Furthermore, Mr. Ducar fails to provide information regarding the amount of time spent preparing the motion and his hourly rate for the court evaluate whether or not its reasonable. Nonetheless, Plaintiffs’ were only partially successful on the present motion with majority of the responses being found to be code-complaint. As such, the court will not impose monetary sanctions at this time.

3. Conclusion

Based on the foregoing, Plaintiffs McMurray Henriks, LLP and Yana G. Henriks’ Motion to Compel Further Responses to Request for Admissions (Set One) is GRANTED IN PART. The Request for Sanctions is DENIED.

Defendant Charmain Campbell is ordered to provide further responses to Request

for Admissions (Set One) nos. 11 and 20 within 15 days of this order.

Plaintiffs are ordered to give
notice.